

		vehicle did not have a latent defect. The problems faced by the Plaintiff, which were the reason that Plaintiff brought in the subject vehicle for repair, is evidence that there was a latent defect. Plaintiff's evidence that there was a latent defect and Defendant's evidence that there was not a latent defect create a triable issue of material fact. Finally, Plaintiff presents evidence that, in January 2024, he received a safety recall notice related to a problem in the vehicle's charging system. (See Decl. of Paul B. Lee in Opp'n to Def.s' Mot. for Summ. J. or, in the Alternative, Summ. Adj., ¶ 7.) This also creates a dispute of fact as to the existence of a latent defect and merchantability that will need to be decided at trial. Accordingly, the court will deny the motion as to the 2nd Cause of Action. <u>Summary Judgment</u> Summary judgment, as opposed to summary adjudication, is not proper unless there is no merit or no defense to the entire action or proceeding. (See Code of Civil Procedure section 437c, subd. (a).) Thus, if any cause of action survives, a grant of summary judgment is improper. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶ 10:26 to 10:27, p. 10-9.) Here, both of the causes of action of the Complaint survive. Therefore, the court must deny the motion for summary judgment. Plaintiff shall give notice of this ruling.
14	Dinh vs. Nguyen 30-2025-01488040	There is no full written tentative ruling. The court provides the following summary tentative ruling: <u>Motion for Summary Judgment</u> Defendants Minh Phuong Nguyen's and Que Tam Trinh's Motion for Summary Judgment as to Plaintiffs' Complaint Based on Settlement and Release is DENIED. There is a triable issue of material fact as to whether Plaintiffs Thien Dinh and Ngan Nguyen, through their counsel, accepted the settlement presented by Defendants Minh Phuong Nguyen and Que Tam Trinh.

		There is no communication or action by the Plaintiffs or their Counsel that shows unambiguous acceptance of the settlement offer made by Defendants. Instead, the factfinder is left to interpret the words and conduct of the parties to determine whether the parties intended to enter into an agreement. From the evidence presented by the parties, a reasonable factfinder could determine that no agreement was entered into, but could also decide that an agreement was entered into. The court cannot grant a motion for summary judgment in such circumstances, and must deny Defendants' motion.
15	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Demurrer</u> Cross-Defendants Stephanie Hendrickson's, Luke Mensink's, Josiah Hendrickson's, and River Hendrickson's Demurrer to Cross-Complaint is OVERRULED as to the 1st and 2nd Causes of Action and SUSTAINED with 15 days leave to amend as to the 3rd Cause of Action. If Cross-Complainants The L3 Property Management and Barry J. Reieux do not amend the Cross-Complainants' Cross-Complaint within the period of time stated above, Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complainants' Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson demur to the entirety of Cross-Complainants' Cross-Complaint (Cross-Complaint) as well as to the 1st, 2nd, and 3rd Causes of Action of the Cross-Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact